

**SUBSTITUTE FOR
HOUSE BILL NO. 5059**

A bill to amend 1998 PA 58, entitled
"Michigan liquor control code of 1998,"
(MCL 436.1101 to 436.2303) by adding section 609k.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 609k. (1) A vendor of spirits; a vendor representative,**
2 **salesperson, or broker that represents the vendor of spirits; or a**
3 **third party that provides engraving services may do either of the**
4 **following:**

5 **(a) Engrave a bottle of spirits sold by a specially designated**
6 **distributor before selling the bottle to a consumer.**

7 **(b) Engrave a bottle of spirits purchased by a consumer from a**
8 **specially designated distributor. Both of the following apply to**
9 **this subdivision:**



1 (i) The vendor of spirits; a vendor representative,
2 salesperson, or broker that represents the vendor of spirits; or a
3 third party that provides engraving services may pick up from the
4 specially designated distributor's licensed premises the bottle of
5 spirits that has been purchased by the consumer from the specially
6 designated distributor and return the bottle to the specially
7 designated distributor's licensed premises after the engraving has
8 been completed for the consumer to pick up.

9 (ii) Possession by a retailer of an engraved bottle of spirits
10 that has been returned to the licensed premises of the specially
11 designated distributor that sold the bottle of spirits for the
12 consumer to pick up subject to subparagraph (i) does not violate
13 section 901.

14 (2) A vendor of spirits; a vendor representative, salesperson,
15 or broker that represents the vendor of spirits; or a third party
16 that provides engraving services may engrave a bottle of spirits
17 purchased by a consumer from the inventory of a specially
18 designated distributor during a consumer sampling event conducted
19 in compliance with section 1027 by a vendor of spirits that holds a
20 consumer sampling event license, or a vendor representative,
21 salesperson, or broker that represents the supplier.

22 (3) A brewer, micro brewer, wine maker, small wine maker,
23 outstate seller of beer, or outstate seller of wine; a salesperson
24 or broker that represents a brewer, micro brewer, wine maker, small
25 wine maker, outstate seller of beer, or outstate seller of wine; or
26 a third party that provides engraving services may do either of the
27 following:

28 (a) Engrave a bottle of beer or wine sold by a specially
29 designated merchant before selling the bottle to a consumer.

1 (b) Engrave a bottle of beer or wine purchased by a consumer
2 from a specially designated merchant subject to both of the
3 following:

4 (i) The brewer, micro brewer, wine maker, small wine maker,
5 outstate seller of beer, or outstate seller of wine; a salesperson
6 or broker that represents a brewer, micro brewer, wine maker, small
7 wine maker, outstate seller of beer, or outstate seller of wine; or
8 a third party that provides engraving services may pick up from the
9 specially designated merchant's licensed premises the bottle of
10 beer or wine that has been purchased by the consumer from the
11 specially designated merchant and return the bottle to the
12 specially designated merchant's licensed premises after the
13 engraving has been completed for the consumer to pick up.

14 (ii) Possession by a retailer of an engraved bottle of beer or
15 wine that has been returned to the licensed premises of the
16 specially designated merchant that sold the bottle of beer or wine
17 for the consumer to pick up subject to subparagraph (i) does not
18 violate section 901.

19 (4) A brewer, micro brewer, wine maker, small wine maker,
20 outstate seller of beer, or outstate seller of wine; a salesperson
21 or broker that represents a brewer, micro brewer, wine maker, small
22 wine maker, outstate seller of beer, or outstate seller of wine; or
23 a third party that provides engraving services may engrave a bottle
24 of beer or wine purchased by a consumer from the inventory of a
25 specially designated merchant during a beer and wine tasting event
26 conducted in compliance with section 537 by a brewer, micro brewer,
27 wine maker, small wine maker, outstate seller of beer, or outstate
28 seller of wine that holds a beer and wine tasting permit, or
29 salesperson or broker that represents the brewer, micro brewer,



- 1 wine maker, small wine maker, outstate seller of beer, or outstate
- 2 seller of wine.